

Our Ref: 2019/01402

PRIVATE AND CONFIDENTIAL

Mr Richard McLean

By email: Rich@richmclean.com.au

Dear Mr McLean

Your complaint about Millennium Medical Centre

Thank you for your online complaint received by the Mental Health Complaints Commissioner (MHCC) on 8 August 2019. You raised concerns about the service provided to you by a general practitioner at Millennium Medical Centre.

My name is Kaaren Dahl, and I am the Manager of the Resolutions Team at the MHCC. I am aware Ms Joanne Lockart, Resolutions Officer, contacted you on 8 August 2019 to discuss the concerns you raised.

In summary, you advised that:

- you were engaged with a doctor at Millennium Medical Centre and shared personal information, including:
 - your sexual orientation
 - that you had experienced sexual abuse in the past
 - that you experienced suicidal thoughts
- you made an attempt to end your life by taking an overdose, and mentioned the doctor in a letter before taking the overdose
- you said this doctor was 'negligent' in their care, and you have sought legal advice through Victoria Legal Aid and Slater and Gordon, without success
- you contacted the Health Complaints Commissioner (HCC), who informed you that the complaint was 'partially resolved'. You are not sure what that means
- the HCC referred your complaint to the Australian Health Practitioner Regulation Agency (AHPRA), and they have not advised you of the outcome of your complaint.

In your discussion with Ms Lockart, she suggested contacting AHPRA to enquire about the status of your complaint. She suggested it may be helpful to ask AHPRA whether the complaint is open, the next steps in the resolution process, and how AHPRA might be involved. If the complaint has been closed, you could ask about the basis for their decision, and whether a letter was sent to you to advise you of the decision. This information may help clarify where your complaint with AHPRA currently stands, and how you may achieve an outcome.

I understand Ms Lockart advised you that the MHCC can consider complaints about publicly funded mental health services, and does not have scope to consider complaints about general practitioners. For this reason, unfortunately, we are unable to take any further action on your complaint, and the matter will now be closed.

We acknowledge the serious nature of your complaint and the impact this has had on you.

We are sorry that the MHCC is unable to assist you any further.

Thank you for raising your concerns with the MHCC. If you have any questions about this letter, please contact Ms Lockart at our office on 1800 246 054 or by email at help@mhcc.vic.gov.au.

Yours sincerely



Kaaren Dahl
Manager Resolutions & Review

13 / 08 / 2019

Tell us about your experience with the MHCC

If you would like to give us feedback or make a complaint about the MHCC, you can email feedbackaboutus@mhcc.vic.gov.au or phone 1800 246 054 and ask to speak to our Internal Complaints Officer. You can also contact the Victorian Ombudsman on (03) 9613 6222 or complete the online complaint form at www.ombudsman.vic.gov.au.